

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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WILLIAM MILAN,

Plaintiff

- against -

**THE CITY OF NEW YORK,
DETECTIVE SEAN LISCOE (shield# 06790),
DETECTIVE CHRISTINA REYES (shield# 06952),
and POLICE OFFICER JOHN DOE
(shield# unknown),**

Defendants.
-----X

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York
December 19, 2023


LOVELACE LAW, PLLC
By: Kawan A. Lovelace, Esq.
Attorney for Plaintiff
72-11 Austin Street, #303
Forest Hills, New York 11375
(718) 662-8265

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X

WILLIAM MILAN,

Plaintiff

Index No.

- against -

**VERIFIED
COMPLAINT**

**THE CITY OF NEW YORK and
DETECTIVE SEAN LISCOE (shield# 06790),
DETECTIVE CHRISTINA REYES (shield# 06952), and
POLICE OFFICER JOHN DOE (shield# unknown),**

Defendants.

=====X

Plaintiff WILLIAM MILAN, by his attorneys LOVELACE LAW, PLLC, by KAWAN A. LOVELACE, ESQ., principal, complaining of the Defendant, respectfully shows to this Court and alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of the defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 10, 2023, at approximately 12:36 p.m., Plaintiff William Milan, while lawfully in the vicinity of 1536 Stadium Avenue, in Bronx County, was subject to an unlawful arrest and detention by Defendant Police Officers. Plaintiff was deprived of his constitutional, common law, and statutory rights when the individual Defendants unlawfully stopped, detained, and seized Plaintiff's property, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. At all times hereinafter mentioned, Plaintiff WILLIAM MILAN was a resident of Bronx County in the City and State of New York.
3. At all times, hereinafter mentioned, the Defendant, **CITY OF NEW YORK**, hereinafter referred to as "**CITY**," was and still is a municipal corporation

organized and existing under and by virtue of the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant **CITY** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the **NEW YORK CITY POLICE DEPARTMENT**.

4. At all times, hereinafter mentioned the defendant, **NEW YORK CITY POLICE DEPARTMENT**, hereinafter referred to as “**NYPD**,” was and is an agency of defendant, **CITY**.
5. That, on and prior to February 10, 2023, at all times hereinafter mentioned the Defendant, **DETECTIVE SEAN LISCOE**, Shield No. 06790, hereinafter referred to as “**LISCOE**,” was and is a police officer employed by Defendant **NYPD**, assigned to the 45TH Precinct, and at all times was acting in such capacity as the agent, servant, and employee of the **CITY** and **NYPD**.
6. That, on and prior to February 10, 2023, at all times hereinafter mentioned the Defendant, **DETECTIVE CHRISTINA REYES**, Shield No. 06952, hereinafter referred to as “**REYES**,” was and is a police officer employed by Defendant **NYPD**, assigned to the 45TH Precinct, and at all times was acting in such capacity as the agent, servant, and employee of the **CITY** and **NYPD**.
7. That, on and prior to February 10, 2023, at all times hereinafter mentioned the Defendant, **POLICE OFFICER JOHN DOE**, Shield No. UNKNOWN, hereinafter referred to as “**JOHN DOE**,” was and is a police officer employed by Defendant **NYPD**, assigned to the 45TH Precinct, and at all times was acting in such capacity as the agent, servant, and employee of the **CITY** and **NYPD**.
8. That, at all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, with the power and authority vested in them as such, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

STATEMENT OF FACTS

9. On February 10, 2023, at approximately 12:36 p.m., Plaintiff was in the vicinity of 1536 Stadium Avenue, in Bronx County, State of New York, when the Defendant Police Officers unlawfully detained and arrested Plaintiff without legal justification, subjected Plaintiff to an unlawful custodial interrogation, and seized Plaintiff's vehicle, refusing to return said vehicle to Plaintiff after he was released from the precinct without ever being charged with any crime or violation of law.

10. Plaintiff was driving his vehicle with one his co-worker in the front passenger seat when Plaintiff was pulled over by Defendant Officers.
11. At no time did Plaintiff commit a VTL infraction or give Defendants any other reason to pull him over.
12. Defendant Officers ordered Plaintiff and his co-worker to step out of the vehicle.
13. While Plaintiff was trying to exit the vehicle a Defendant Officer grabbed Plaintiff by the arm and escorted Plaintiff to the rear of the vehicle.
14. Plaintiff asked Defendant Officer why he was being stopped and detained, but Defendant Officer ignored Plaintiff's question and proceeded to handcuff and arrest Plaintiff.
15. A Defendant Officer also handcuffed the other individual and placed him under arrest.
16. At no time relevant herein did Plaintiff, or the co-worker, commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff, or the co-worker, of committing a crime or violating the law in any way.
17. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff, or the co-worker, or from a location that was within either Party's possession, custody, or control.
18. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by Defendant Officers without legal justification or probable cause, unlawfully detained, and deprived of his personal property.
19. Neither Plaintiff nor the co-worker resisted arrest.
20. Both Plaintiff and his co-worker were transported to a precinct in Bronx County and placed in a holding cell.
21. Plaintiff asked Defendant Officers numerous times why he was he being arrested but his questions were ignored by Defendants.
22. Plaintiff and his co-worker were eventually placed in separate holding cells where an Officer asked Plaintiff if he was willing to talk to Defendant Officers.
23. Plaintiff requested his lawyer after which the Officer left Plaintiff alone.
24. After a few hours, Plaintiff was taken to another room where **DETECTIVE CHRISTINA REYES** started to ask Plaintiff questions.

25. Plaintiff told **REYES** that he did not want to answer any questions and that he wanted to call his lawyer.
26. Plaintiff was then placed back in the holding cell and after a few more hours, he was released, along with his co-worker, from the precinct without being charged with any crime or offense, or being told why they were arrested and detained.
27. Plaintiff was unlawfully detained for approximately eight (8) hours.
28. Defendants refused to release Plaintiff's truck and cellular phone, and issued vouchers for said property to Plaintiff.
29. Plaintiff eventually reclaimed his vehicle from Defendants but upon retrieval, Plaintiff observed damage to the wires of the engine which ultimately caused the vehicle to shut off and break down after Plaintiff drove the vehicle a few blocks from the precinct.

PROCEDURAL POSTURE

30. On March 11, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
31. More than thirty days have elapsed since service of said notice, prior to the commencement of this action, and Defendant CITY has failed to pay or adjust this claim.
32. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
33. A In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on June 22, 2023.
34. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.
35. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

36. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

FIRST CAUSE OF ACTION

Negligence

37. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
38. Defendants owed a duty of care to Plaintiff.
39. Defendant Officers breached that duty of care by deliberately restraining and injuring Plaintiff.
40. As a direct and proximate result of such acts, Defendant Officers deprived Plaintiff of his rights under the laws of the State of New York.
41. All of the foregoing occurred without any fault or provocation by Plaintiff.
42. Defendant Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
43. The City, as the employer of the Officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
44. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Search

45. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
46. The illegal approach, pursuit, stop and grab employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
47. The conduct of Defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
48. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
50. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

51. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
52. The individually named police officer Defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
53. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

54. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
55. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
56. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.
57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
59. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

60. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
61. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
62. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.
63. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
65. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
66. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

67. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

68. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise Defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
69. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

70. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
71. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose Constitutional rights were being violated in their presence by other officers.
72. Defendants failed to intervene to prevent the unlawful conduct described herein.
73. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, his property was damaged, and he was humiliated and subject to other physical constraints.
74. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
76. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
77. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Assault**

78. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
79. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.
80. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
82. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
83. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION**Battery**

84. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
85. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner grabbed Plaintiff by his arms, handcuffing Plaintiff in an excessively tight manner causing bruising, pain, and damage to Plaintiff's wrists, thereby brutally effecting an arrest of Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff, and caused such battery.
86. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
88. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
89. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

90. Plaintiff repeats, reiterates, and, re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
91. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:
- i. freedom from unreasonable search and seizure of her person and property;
 - ii. freedom from arrest without probable cause;
 - iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention Plaintiff was aware and did not consent;
 - iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual Defendants; and
 - v. freedom from deprivation of liberty without due process of law.
92. As a direct and proximate result of Defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic, and emotional injuries, as well as a deprivation of liberty.
93. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.
94. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.
95. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

96. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff William Milan demands judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: Queens, New York
December 19, 2023

Yours, etc.,

LOVELACE LAW, PLLC



By: Kawan A. Lovelace, Esq.

Attorney for Plaintiff

72-11 Austin Street, #303

Forest Hills, NY 11375

(718) 662-8265

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****Index No.**

Purchased_____

-----X
WILLIAM MILAN,**VERIFICATION**

Plaintiff

-against-

**THE CITY OF NEW YORK,
DETECTIVE SEAN LISCOE (shield# 06790),
DETECTIVE CHRISTINA REYES (shield# 06952),
and POLICE OFFICER JOHN DOE (shield# unknown),**Defendants.
-----X

I, **KAWAN A. LOVELACE**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Queens, NY
December 19, 2023


KAWAN A. LOVELACE, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

WILLIAM MILAN,

Plaintiff

-against-

**THE CITY OF NEW YORK,
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DETECTIVE CHRISTINA REYES (shield# 06952),
and POLICE OFFICER JOHN DOE (shield# unknown),**

Defendants.

SUMMONS & COMPLAINT

**Lovelace Law, PLLC
Attorney for Plaintiff
72-11 Austin Street, #303
Forest Hills, NY 11375
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**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007**